

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 40-012
Amendments to Title 6 of the Chickasaw Nation Code
(Computation and Enlargement of Time)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules regarding the computation and enlargement of time for filings with Title 6 of the Chickasaw Code, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend and enact further rules for the computation and enlargement of time for filings with Title 6 of the Chickasaw Code.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 6, Section 6-101.29(A) of the Chickasaw Nation Code, all other sections to remain the same (additions shown in red, deletions stricken through). Amendments provided as followed:

SECTION 6-101.29

COMPUTATION AND ENLARGEMENT OF TIME.

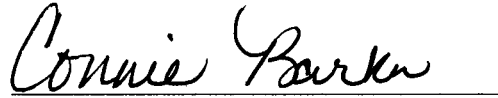
A. In computing any period of time prescribed or allowed by this Act, by order of the Court, or by any applicable statute, the day of the act, event, or default from which the designated period of time begins to run shall not be included. The last day of the period so computed shall be included, unless it is a Saturday, a Sunday, or a Legal Holiday, or any other day when the Court Clerk does not remain open for public business until 4:00 ~~5:00~~ p.m. in which case the period runs until the end of the next day which is not a Saturday, a Sunday, or a Legal Holiday or any other day when the office of the Court Clerk does remain open for public business until 4:00 ~~5:00~~ p.m. When the period of time prescribed or allowed is less than or equal to seven (7) days, intermediate Saturdays, Sundays, and legal holidays or any other day when the office of the Court Clerk or the Court does not remain open for public business until 4:00- ~~5:00~~ p.m. shall be excluded in the computation. As used in this Section and in the provisions relating to the Court, "Legal Holiday" includes New Year's Day, Washington's Birthday, Memorial Day, Independence Day, Labor Day, Piomingo Day (Federally recognized holiday known as Columbus Day), Veteran's Day, Thanksgiving Day, Christmas Day, and any other day appointed

as a holiday by the President or the Congress of the United States or by the Governor of the Chickasaw Nation.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on July 21, 2023 by a vote of 13 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:  Date: JUL 21 2023
Bill Anoatubby, Governor
The Chickasaw Nation

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Explanation:

This Permanent Resolution seeks to amend the rules for the time allowed to file a pleading or document under Title 6 of the Code. It changes the time to file from 4:00 p.m. to 5:00 p.m. allowing more time to satisfy the filing requirements.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature